Ritter Insurance Marketing LLC.
Agent Compensation Agreement for Independence – Level 7

This Agent Compensation Agreement ("Agreement"), is made and effective as of the date of the last signature affixed hereto ("Effective Date") by and between Ritter Insurance Marketing LLC, hereinafter referred to as ("Ritter") and ____, hereinafter referred to as ("Agent") for the payment of commission and/or administrative fee for enrollments provided to Independence Blue Cross, LLC, and its subsidiaries and affiliates (collectively "Independence") or ("Insurance Company"), that provide health insurance products. Ritter and Agent are referred to herein individually as a Party or party and collectively as the Parties or parties.

WHEREAS, Independence is contracted with the Centers for Medicare & Medicaid Services ("CMS") to offer Medicare Advantage plans (collectively, the "Plans") to eligible Medicare beneficiaries;

WHEREAS, Ritter is contracted with Independence to facilitate the enrollment of eligible Medicare beneficiaries into Independence's Plans; and,

WHEREAS, Agent desires to solicit, and Ritter desires that Agent so solicit, applications from eligible Medicare beneficiaries to enroll in the Plans.

NOW THEREFORE, in consideration of the mutual covenants herein contained and intending to be legally bound hereby, the Parties hereto agree as follows:

General Conditions:

1. By accepting payments from Ritter, Agent agrees to all conditions of this Agreement.

2. Agent agrees to comply with the CMS Third-Party Marketing Organization ("TPMO") and other Medicare Advantage and Part D Communication Requirements (42 C.F.R §§ 422.2260 and 423.2260, 422.2267 and 423.2267, 422.2274 and 423.2274), and/or other Independence policies, including but are not limited to the following.

    (a) Disclose to Ritter any subcontracted relationships used for marketing, lead generation, and enrollment.
    (b) Record sales, marketing, and enrollment calls, including the audio portion of any web-based call, with beneficiaries in their entirety.
    (c) Report to Ritter monthly any staff disciplinary actions or violations of any requirements with beneficiary interaction in connection with the provision of services under this Agreement.
    (d) Use the TPMO disclaimer as required under 42 C.F.R §§422.2267(e)(41), 423.2267(e)(41). The disclaimer has been revised by CMS as follows:

        - If Agent does not sell all carriers in a service area: "We do not offer every plan available in your area. Currently we represent [insert number of organizations] organizations which offer [insert number of plans] products in your area. Please contact Medicare.gov, 1-800-MEDICARE, or your local State Health Insurance Program (SHIP) to get information on all of your options."
        - If Agent sell all carriers in a service area, "Currently we represent [insert number of organizations] organizations which offer [insert number of plans] products in your area. You can always contact Medicare.gov, 1-800-MEDICARE, or your local State Health Insurance Program (SHIP) for help with plan choices."

        The applicable TPMO disclaimer must be 1) verbally conveyed within the first minute of a sales call, 2) electronically conveyed when communicating with a beneficiary through email, online chat, or other electronic means of communication, 3) prominently displayed on TPMO websites, and 4) included in any marketing materials, including print materials and television advertisements, developed, used or distributed by the TPMO.

    (e) Review specific topics, as specified on the Pre-enrollment checklist, including the "effect of current coverage".
    (f) Obtain the Scope of Appointment ("SOA") at least 48 hours before all personal marketing appointments in accordance with the CMS guidelines. The 48-hour waiting period does not apply when 1) the SOAs are completed during the last four days of a valid election period for the beneficiary, 2) unscheduled in person

meetings (walk-ins) initiated by the beneficiary, and 3) inbound calls made to a sales agent by a beneficiary. Note that a signed SOA is only valid for 12 months following the date of beneficiary's signature date or the date of the beneficiary's initial request for information.

(g) Submit the SOA form and other required materials along with the enrollment form for all enrollments.

(h) Ensure the SOA, enrollment application, and all such related materials are complete, accurate, and appropriately signed by the eligible Medicare beneficiaries or his/her authorized representative.

(i) Submit SOAs and enrollment applications to Ritter or Independence, as appropriate, immediately but no later than 24 hours upon completion.

(j) Offer or make available to all applicable Independence Medicare Supplement Plans if an eligible Medicare beneficiary inquires or seeks information regarding Independence's Medicare Supplement Plans; and,

(k) Meet or exceed the minimum requirement to sell at least two (2) new MA Plans (plan changes and rapid disenrollments not qualified) annually (excluding agency principals). Failure to meet this minimum standard may result in removal of Agent from selling Independence products by Independence.

3. Agent agrees to allow Ritter and Independence to conduct monitoring activities including ride-alongs and secret shopping activities.

4. If Agent is a general agency level agent ("General Agency"), Agent agrees to:

   (a) Monitor its downline agents' marketing activities as agreed upon by Ritter, General Agency and Independence, including those listed in Section 2 of this Agreement.

   (b) Maintain sufficient downline agents, production requirement, and to provideadministrative services set forth in Exhibit A in accordance with the General Agency level defined.

   (c) Maintain adequate records and upon reasonable notice shall provide Ritter access to and the right to audit all information and records related to the administrative services rendered by General Agent. Ritter may request Agent to complete periodic attestations and/or survey to comply with CMS requirements. Agent agrees to comply promptly upon reasonable request by Ritter.

5. Agent agrees to assign any and all commissions related to the enrollment of eligible Medicare beneficiaries into Independence's Plans to Ritter. Ritter shall pay commissions to Agent according to the terms of this Agreement, however, nothing in this Agreement shall be construed to violate the Medicare Advantage Communications Requirements nor shall this Agreement violate the terms and conditions of the Field Marketing Organization ("FMO") Agreement between Ritter and Independence. If there is any conflict between this Agreement and the aforementioned, this Agreement shall be amended to adhere to CMS regulations and to the FMO Agreement terms and conditions.

   Licensed Only Agent ("LOA") Arrangement. Agent agrees that any and all commissions for enrollments generated by LOA, as a downline of the Agent, which are assigned to Ritter shall be paid to the Agent who employs or has an exclusive contract with the LOA. Agent shall pay LOA in accordance with their contract or employment agreement in conformity with CMS agent compensation guidelines. Agent, who has LOA as downline, acknowledges that neither Ritter nor Independence is a party to the compensation or employment agreement between the Agent and the LOA and therefore has no right or duty to enforce the agreement made between the LOA and Agent. Upon request, Agent shall provide Ritter with written documentation regarding Agent's agreement with each LOA in connection with commission related to the enrollment of eligible Medicare beneficiaries into Independence's Plans. Ritter reserves the right to pay the LOA directly if the Agent fails to compensate the LOA.

   Books and Records. Agent shall maintain adequate books and records in regard to compensation of its downline agents. During regular business hours and upon reasonable notice or demand, Ritter shall have access to and the right to audit all information and records related to commission compensation performed by Agent pursuant to the Agreement. This right shall survive the termination of the Agreement and shall continueso long as Agent has a legal obligation to maintain such records.

6. Ritter shall not be responsible to pay any commission / administrative fee to Agent for any commission / administrative fee where Ritter does not receive compensation from Independence. This includes circumstances where Ritter's actions or inactionresult in the loss of commissions.

7. Ritter will pay Agent commissions/administrative fees based on the Commission Schedule in Exhibit B below. To the extent any sales level is not involved in the sale of Independence products, the commission payable to such sales level shall roll-up and be payable to the next higher sales level. Ritter shall pay Agent the net amount

of commission payable on this schedule less any commissions paid at a lower level for the sale of an Independence product.

Agent acknowledges and agrees that with respect to individual sales of Independence's Plans, Independence will pay commissions on those sales only to Ritter and Ritter alone is solely and severally liable for payment of any applicable commissions to Agent who has entered a compensation agreement with Ritter. Independence is not a party to any of the compensation agreements among and between Ritter and Agent. Independence shall not be liable for any errors, omissions, or breaches under the terms and conditions of any compensation agreements among and between Ritter and Agent nor shall Independence be liable for any payment of commissions to Agent even if Ritter fails to pay commissions due to Agent under the terms of any compensation agreements among and between Ritter and Agent.

8. Initial first year commissions/administrative fees and replacement first year commissions/ administrative fees are determined by Independence in accordance with CMS Marketing Guidelines. Ritter will pay the initial first year commission/administrative fee or replacement first year commission/administrative fee in accordance with the Independence payment. Ritter is not responsible for any dispute involving determining whether a first year commission is initial or replacement. Compensation for renewals on Independence's MA/MAPD/PD products shall be paid to the Agent (provided Agent is in good standing) for the remainder of the life of the policy and shall be paid at the renewal commission level for each respective contract year at the original effective enrollment date. Renewal Commission for Independence Medicare Supplement Plans shall be paid at the initial compensation rate for a period of five (5) additional years following the initial year of sale, provided that the member remains a member of the Independence Medicare Supplement Plan and Agent is in good standing with Independence.

9. Ritter will pay commissions/administrative fees within fourteen (14) days of receipt of payment from Independence. Commission/administrative fee payments from Independence to Ritter are processed after confirmation of accretion by CMS and effective date of coverage on the plan. Commissions of less than $100.00 will accrue to the next statement. Ritter will pay commission related to Independence's Medicare Supplement sales yearly commission once per month within 14 days of receipt of payment from Independence.

10. Independence may charge back commissions/administrative fees to Ritter for a variety of reasons including but not limited to: rapid disenrollment of the member, early termination of the member, corrections of commissions paid to Ritter in error, etc. In cases where Independence charges back commissions/administrative fees to Ritter, Ritter will charge back all or a portion of commissions/administrative fees previously paid to Agent. Agent agrees to promptly repay any debit balances which may accrue due to charge backs to the Agent account by Ritter.

11. Agent hereby grants Ritter the right to offset commission and/or administrative fee amounts payable to Agent by the amount of any indebtedness that Agent or the Agent's downline agencies or agents owes Ritter, and further grants Ritter a first lien and prior security interest upon all compensation due hereunder. Agent agrees to promptly execute and deliver any documents reasonably requested by Ritter related to such indebtedness, the security interests granted herein or otherwise (including but not limited to under a promissory note and/or security agreement), or the perfection of such security interest, including, but not limited to, a promissory note, security agreement and/or Uniform Commercial Code Financing Statements. Upon termination of this Agreement, Agent must immediately, without demand, pay any indebtedness that Agent or, unless promptly paid by such downline agencies or agents, any downline agency or agent owes Ritter.

    If Agent does not promptly repay any indebtedness that Agent or the Agent's downline agencies or agents owes Ritter, Ritter may off set such balances against any commissions due the Agent from any contracts with any insurance company.

12. Agent shall not engage in any prohibited marketing activities and all marketing activities shall be conducted in accordance with Medicare Laws and Regulations and will be pre-approved, in writing by Independence. Agent agrees to strictly comply with Independence's policies and procedures and all applicable federal and state laws, rules and regulations (including but not limited to anti-kickback statues, false claims acts and fraud and abuse statutes and/or regulations) relating to promoting the Medicare Products to eligible Medicare beneficiaries. Agent will complete the training required by Independence for the promotion and marketing of the Medicare Products and read and understand the Marketing Guidelines (as defined below) and will comply with all policies therein. Agent shall not make representations with respect to the nature or scope of the benefits of enrollment in the Medicare Products except in conformity with the written guidelines and marketing materials furnished by Independence to Ritter and its Agents for that purpose. These written guidelines specifically include, but are not

limited to (i) Title 42 of the Code of Federal Regulations Parts 422 (Medicare Advantage Program) and 423 (Voluntary Medicare Prescription Drug Benefit); (ii) Title 42 Chapter IV Subchapter B Part 422 Subpart V (Medicare Advantage Communication Requirements) CMS' Medicare Communications and Marketing Guidelines for Medicare Advantage Plans, Prescription Plans and 1876 Cost Plans and any and all updates, revisions and additional thereto and (iii) such other written guidelines and marketing materials that may be issued by CMS or other applicable regulatory agencies or otherwise be established by Independence and, in the case of those established by Independence, provided to Ritter and Agent directly (collectively, the "Marketing Guidelines"). By entering into this Agreement, Agent is acknowledging he/she has received, read and understands the CMS marketing guidelines and will comply with said guidelines. Agent shall not provide gifts, including gifts of nominal value, to eligible Medicare beneficiaries, unless provided by Independence.

Agent agrees to comply with all applicable state regulatory guidelines or requirements pertaining to the sales of Independence Medicare Supplement Plans.

Agent shall comply with all applicable provisions of Independence's Corporate Compliance Program including but not limited to the Independence's Agent Code of Ethics (Exhibit C).

13. At all times that this Agreement is in effect, Agent shall not:

(a) bind coverage;
(b) accept an applicant into an Independence Plan;
(c) misrepresent or omit facts in any application;
(d) modify or waive any Independence Plan provisions or any terms regarding enrollment, coverage or benefits;
(e) distribute any advertising, circular or promotional literature without prior approval by Independence; or
(f) represent that Agent has authority on behalf of Independence or has any authority except as explicitly provided in this Agreement.
(g) represent or imply that an employer and employee relationship exists between Agent and Independence.
(h) create or disseminate any communication or materials, hard copy or electronic, using the Independence name, logo, trademark, symbol, or service mark except upon prior written agreement and written approval of all such communications or materials by Independence.
(i) conduct Medicare sales events on behalf of Independence without receiving prior approval from Independence.

Furthermore, Agent shall not and cannot guarantee an effective date of coverage for an eligible Medicare beneficiary and shall only advise eligible Medicare beneficiaries that a proposed effective date will be submitted to CMS who will approve the effective date of coverage. Agent agrees to only utilize CMS-approved marketing materials that are obtained directly from Independence, which Agent is not permitted to change or modify in any manner whatsoever.

14. Agent agrees to disclose to any prospective eligible Medicare beneficiary prior to or at time of enrollment that the Agent making the sale is compensated based on the prospective eligible Medicare beneficiary's enrollment in a plan. Agent shall deliver and explain to eligible Medicare beneficiaries the initial administrative forms, such as billing and enrollment materials as approved in advance by Independence. Agent shall ensure eligible Medicare beneficiaries sign forms and Agent returns complete and accurate forms in a timely manner in accordance with Independence procedures and CMS' requirements. Agent shall comply with all Independence and CMS requirements regarding the timely submission of enrollment materials and all such related materials and shall submit all enrollment forms and, if applicable, scope of appointment forms, set forth in Section 2 above.

15. Agents shall maintain adequate books and records and comply with all other requirements set forth in Exhibit D as attached hereto. Independence, during regular business hours and upon reasonable notice or demand, shall have access to and the right to audit all information and records related to services rendered by Agent pursuant to this Agreement. This right shall survive the termination of this Agreement and shall continue so long as Agent hasa legal obligation to maintain such records. Agent agrees to keep all materials or the information therein that are the property of Independence confidential and not to reproduce, disclose or disseminate the materials or the information contained therein to any third party or parties without the prior written consent of Independence. Within thirty (30) day of the termination of this Agreement for any reason, Agent shall return to Independence all such materials and any copies thereof in its possession.

Agent shall treat as trade secrets and as confidential information any and all information concerning customers of Independence and/or Independence /Ritter's business, strategies, technologies, products, techniques, methods, systems, price-books, rating tools, plans or policies. Agent shall not, during the term of this Agreement or at any time thereafter, disclose such information, in whole or in part, to any person, firm or corporation for any reason or purpose whatsoever, or use such information in any capacity other than to fulfill the Agent's obligations defined in this Agreement.

16. Agent acknowledges that pursuant to the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"), the United States Department of Health and Human Services has promulgated regulations relating to the privacy of individually identifiable health information, protected health information ("PHI") and the security of such information when transmitted by electronic means and further that such regulations may require that contracts contemplating the collection of individually identifiable health information and/or the transmission of such information electronically include certain provisions.

    Agent, its sub-agents and employees (collectively, "Subcontractor") acknowledge that as a result of its relationship with Ritter and Independence, it may create, have access to or receive confidential PHI including, but not limited to, social security numbers, medical records and other individual member identifying information. Subcontractor agrees to comply with the terms included in the HIPAA Subcontractor Business Associate Addendum set forth in Exhibit E and requirements included in this Section 16 listed below:

    (a) will not use or further disclose PHI other than as permitted or required by law,
    (b) Will use or disclose PHI to perform functions, activities, or services for, or on behalf of, Ritter and/or Independence, provided that such use or disclosure would not violate the minimum necessary and/or Limited Data Set requirements of HIPAA or the minimum necessary policies and procedures of Independence,
    (c) will protect and safeguard from any oral and written disclosures of all confidential information, both medical and financial, regardless of how such information is stored, with which it may come into contact,
    (d) use appropriate safeguards to prevent use or disclosure of PHI other than as permitted by this Agreement or required by law,
    (e) Will document such disclosures of PHI and information related to such disclosures as would be required for Ritter or Independence to respond to a request by an Individual for an accounting of Disclosures of Protected Health Information in accordance with 45 C.F.R. § 164.528 and will shall make such documentation available to upon request,
    (f) Will agree to comply with the determination of a request for restriction to the Use or Disclosure of Protected Health Information and/or determination of a request for alternative methods of confidential communication pursuant to 45 C.F.R § 164.522 at the request of Ritter or Independence, and in the time and manner mutually agreed to by the Parties, but no later than ten (10) business days. If Subcontractor receives a request for restriction to the Use or Disclosure of Protected Health Information and/or request for alternative methods of confidential communication directly from an Individual, Subcontractor shall forward such request to Ritter within five (5) business days,
    (g) will ensure that all of its subcontractors, subagents and employees, which may have contact with PHI, agree to all of the same restrictions and conditions to which Subcontractor is bound,
    (h) will report to Ritter and Independence any unauthorized use or disclosure of PHI immediately upon becoming aware of it; and,
    (i) will comply with all applicable laws and regulations specifically including the privacy and security standards of HIPAA (45 C.F.R. Parts 160-164), Title V of the Gramm-Leach-Bliley Act (15 U.S.C.§ 6801 et seq.), applicable provisions of the Health Information Technology for Economic and Clinical Health Act as incorporated in the American Recovery and Reinvestment Act of 2009 (the "HITECH Act"), and any applicable state legislation and regulations, as amended from time to time.

    Agent further agrees to cooperate and successfully complete any required HIPAA training requested and offered by Independence or its designated vendor.

17. Investigation and Corrective Action of Agent.

    17.1 Agent acknowledges and agrees to cooperate with Independence on the submission of all licensure and background information in a timely and accurate manner. This includes but is not limited to the submission of all information by agent via a web based implementation and monitoring tool. Agent further agrees to comply and cooperate with Independence in the timely investigation and response to any complaints received by Ritter, Independence or CMS from any Medicare beneficiary, enrollee or prospective enrollee.

    Agent authorizes Independence, in its sole discretion, to (a) conduct an investigation relating to Agent's background and qualifications including but not limited to, reviewing criminal, education, and state insurance records; and (b) monitor Agent's performance through (i) outbound verification calls, (ii) examination of Agent's rapid disenrollment and cancellation frequencies, and (iii) any other lawful means chosen by Independence.

Agent further agrees to notify Ritter immediately but no later than three (3) days of any and all actions regarding Agent's non-compliance with any of the policies and procedures of Independence, and/or non-compliance with Medicare Communications and Marketing Guidelines, and/or non-compliance with the applicable laws.

17.2 Agent agrees that Independence is an intended third-party beneficiary of this Agreement and that should Agent violate this Agreement or any provision of the Independence /Ritter FMO contract then Independence shall have the right to terminate Agent's Agreement with FMO under the terms and conditions of this Agreement.

18. Term of Agreement. The term of this Agreement shall begin on the date of the Effective Date and shall continue until terminated in accordance with the provision of Section 18.

18.1 Termination without Cause. This Agreement may be terminated without cause by either Ritter or Agent upon sixty (60) days prior written notice or such minimum number of days as required by applicable law, but in no event less than one hundred twenty (120) days prior to the date the Annual Enrollment Period ("AEP") begins as determined by CMS. Termination received by Ritter during AEP shall be postponed until January 1st of the following year.

(a) Upon termination of this Agreement without cause, any compensation due to Agent as set forth in this Agreement in effect as of the effective termination date of this Agreement (subject to the conditions specified in Section 18.3) shall be vested in Agent and payable to Agent by Ritter regardless of whether this Agreement is still in force at the time such compensation becomes due for as long as each such applicable eligible Medicare beneficiary remains enrolled in the product with Independence, commissions continue to be paid by Independence, and Agent remains licensed and appointed in good standing with Independence.

(b) In the event of the termination of the FMO Agreement between Ritter and Independence, this Agreement will be terminated simultaneously. Independence may assist Agent in establishing a relationship with a replacement FMO so long as the Agent qualifies in such an agreement. Upon termination of the FMO Agreement between Ritter and Independence, Ritter shall not be responsible for paying Agent commissions and/or any applicable administrative fees effective as of the date of termination. Commissions for all previously written business shall follow the Agent to the new FMO. If Agent does not contract with a replacement FMO, no further commissions are payable.

18.2 Termination with Cause. This Agreement may be terminated immediately upon the occurrence of any of the following:

(a) Such termination is required by state or federal law or regulation, or by an order of any state or federal agency or court with authority to issue such an order.
(b) The failure of Agent to comply with (i) the policies, procedures, rules and regulations of Independence, (ii) the Marketing Guidelines, (iii) the Medicare Laws and Regulations or (iv) the laws or regulations of the states in which Agent is licensed to conduct business or any federal or state regulatory authority having jurisdiction over the Parties.
(c) The failure of Agent to perform any material obligations imposed upon Agent under the terms and conditions of this Agreement.
(d) The conviction of Agent or any of its principals, shareholders, directors or officers of a felony crime or any other crime involving moral turpitude.
(e) The exclusion of Agent or any of its principals, directors or officers from participation in Medicare, Medicaid or any federal health care program.
(f) The failure of Agent to provide Independence with certificates of insurance and to maintain the insurance coverage as required by Independence, or
(g) The promotion and marketing of the products by Agent or any of its principals, shareholders, directors or officers or any representative when a suspension is in effect.

In the event this Agreement is terminated with cause under this Section, no further payment shall be due.

18.3 Conditions for Commission Payment.

(a) Agent remains in “Good Standing” with Independence according to CMS Medicare Advantage Communication Requirements and Independence continues to pay Ritter for agent business. “Good Standing” shall mean licensed and appointed to sell in the appropriate state(s), annually trained and tested with passing score. To guarantee staying AOR for a given calendar year, Agent must be in “Good Standing” with Independence no later than December 7th of the previous calendar year.
(b) Full Year Commissions earned by Agent total at least $250 in the prior Calendar Year.
(c) Agent is not terminated for cause as specified in Section 18.2.
(d) Agent fulfills General Agency obligations set forth in Section 4, Section 19, and Exhibit A of this Agreement. Ritter reserves the right to reduce Agent’s commission level if Agent failed to fulfill its General Agency requirements.
(e) With approval from immediate Upline, Agent may voluntarily cede AOR for any or all cases they are currently AOR of to any other agent in “Good Standing” with Independence, subject to Ritter and Independence approval.
(f) In scenarios (a) and (c), the Agent’s immediate Upline will have the right to choose and assign new AOR to any and all cases the previous AOR had. The new AOR must be in “Good Standing” with Independence.
(g) Omitted.
(h) Ritter reserves the right to pass through any and all applicable financial penalties assessed by Independence when Agent fails to comply with any provision of this Agreement.

18.4 Agent may only change sales hierarchies consistent with Independence’s policies and procedures on switching hierarchies.

19. Definitions for Commission levels. Writing Agent levels are defined as LOA, Level 1, Level 2, Level 3 and Level 4. General Agency levels have the following requirements on the minimum number of downline agents in the hierarchy:

- Level 5 - Minimum of 1 downline agent (in addition to the principal) in Good Standing with Independence.
- Level 6 - Minimum of 4 downline agents (in addition to the principal) in Good Standing with Independence.
- Level 7 - Minimum of 7 downline agents (in addition to the principal) in Good Standing with Independence.

20. Prohibited agent conducts. Agent agrees to not engage in the following prohibited sales/marketing practices:

- Making unsolicited home visits unless an appointment at the beneficiary’s home at the applicable date and time was previously scheduled,
- Marketing new plans prior to October 1,
- Soliciting or accepting enrollment applications for January 1 effective date before October 15,
- Making outbound calls based on referral,
- Soliciting beneficiaries door-to-door prior to receiving an invitation from the eligible Medicare beneficiary,
- Placing outbound calls to prospective or former members, unless the eligible Medicare beneficiary requested the call and their solicitation for information is documented,
- Misrepresenting, intimidating, or using high-pressure sales tactics. If eligible Medicare beneficiary says he or she is not interested, the conversation must end,
- Offering eligible Medicare beneficiaries a cash or cash equivalent payment as an inducement to enroll in a Medicare Advantage plan,
- Using of the Medicare name, CMS logo, and products or information issued by the Federal Government, including Medicare card, in a misleading way in both communication and marketing material (i.e., website, print material),
- Stating that the Agent works for or is contracted with the Social Security Administration (SSA) or the Centers for Medicare & Medicaid Services (CMS),
- Misrepresenting a product being marketed as an approved Medicare Advantage Prescription (Part D) plan when it is actually a Medigap policy or non-Medicare drug plan,
- Using an unapproved presentation or material. Agent shall use only those subscription forms, insurance applications, printed materials, and any other sales or marketing materials as are provided by Insurance Company, except as Insurance Company may otherwise approve in writing,
- Marketing or enrolling other lines of business. Additional products that were not identified, agreed upon, and documented in the Scope of Appointment cannot be discussed unless the eligible Medicare beneficiary requests this information. A separate appointment is required to discuss additional products and a 48 hour "cool off" period must be observed before a second appointment can be scheduled,
- Conducting outbound telephone enrollment, which also includes transferring outbound calls to inbound lines

for telephone enrollment,

- Engaging in forgery, including manually assisting eligible Medicare beneficiary with the signing of the enrollment application,
- Engaging in unauthorized language interpretation,
- Dissemination of inaccurate or false enrollment materials,
- Engaging in marketing or enrollment activities in restricted healthcare settings (exam rooms, hospital patient rooms, treatment areas, dialysis center, pharmacy counter areas, etc.),
- Scheduling unauthorized group presentations. Agent must obtain approval from Insurance Company prior to organizing or advertising a group presentation (30) days in advance,
- Charging beneficiaries marketing fee,
- Conducting marketing events within 12 hours of an educational event, in the same location (the same building or adjacent buildings),
- Distributing or collecting Scope of Appointment forms or set up future personal appointment at an educational event (Agent may make available and receive beneficiary contact information, including Business Reply Cards, but not including Scope of Appointment forms or set up future personal appointment - Note that a signed Business Reply Card is only valid for 12 months following the date of beneficiary's signature date or the date of the beneficiary's initial request for information.),
- Using unsubstantiated statements without supporting data in materials,
- Advertising benefits that are not available to beneficiaries in the service area(s) where the marketing appears, unless the advertisement is in local media that serves the service area(s) where the benefits are available and reaching beneficiaries who reside in other service areas is unavoidable,
- Engaging in prohibited MA Open Enrollment Period (OEP) marketing activities. Such prohibited OEP marketing activities include sending unsolicited materials advertising the ability to change plan during OEP, targeting beneficiaries who are in OEP because they enrolled in a MA plan during AEP by purchasing mailing lists or other means of identification, engaging or promoting agent/broker activities that intend to target the OEP as an opportunity, or calling or contacting former enrollees who have selected a new plan during AEP,
- Sharing beneficiary data with another TPMO without prior express written consent from the beneficiary. Prior express written consent from the beneficiary to share the data and be contacted for marketing or enrollment purposes must be obtained through a clear and conspicuous disclosure that lists each entity receiving the data and allows the beneficiary to consent or reject to the sharing of their data with each individual TPMO; and,
- Any other conduct that CMS prohibits in the future, or which Ritter deems prohibited in the future, based on interpretation of current or new CMS guidance.

21. Each Party agrees to indemnify and hold the other party harmless from and against any and all claims, demands or causes of action whatsoever to the extent resulting from or arising out of any act, error or omission on the part of the indemnifying party’s officers, agents, representatives or employees in breach of this Agreement. Agent further agrees to hold harmless Independence from any claim, suit, cost or expense, of any kind, including but not limited to the costs of defense incurred by Independence as a result of any actions or omissions by Ritter or Agent in connection with its performance of the terms and conditions of any compensation agreement among and between Ritter and/or Agent, including but not limited to (i) breach of Ritter obligations under the applicable compensation agreement, and/or (ii) allegations, judgments, findings or determinations that Independence is vicariously liable for such actions or omissions by Ritter and/or Agent, (iii) allegations, judgments, findings or determinations that Independence is liable, directly or vicariously, for failure to oversee Ritter’s and/or Agent's compliance with the terms, conditions and obligations under the applicable compensation agreement or the law, (iv) allegations that Ritter has not paid any commissions or other amounts due or allegedly due, and/or (v) allegations that Independence is responsible for any commission payments or other payments to any third parties under any applicable compensation agreement.

22. Independence is required to comply with the provisions of the Violent Crime Control and Law Enforcement Act of 1994 (“VCCA”), 18 U.S.C. §§ 1033 et seq., and the related state Insurance Department guidelines. The VCCA prohibits companies and individuals from engaging in the business of insurance if the company or individual has ever (1) pled guilty to, (2) pled no contest to, or (3) been convicted of (a) any criminal felony involving dishonesty or a breach of trust, or (b) of an offense defined within the VCCA, unless that company or individual has obtained written consent from the appropriate state insurance department. Agents are “engaged in the business of insurance” for purposes of the VCCA. Agent certifies that he/she and each of the employees, agents, and/or other representative of Agent who perform work or services described in this Agreement has not (1) pled guilty to, (2) pled no contest to, or (3) been convicted of (a) any criminal felony involving dishonesty or a breach of trust, or (b) of an offense defined within the VCCA. Agent understands that if Agent learns that any

person who is performing work or services on behalf of Agent as described in this Agreement may not be in compliance with the VCCA, Agent is obligated to immediately notify Ritter, in writing, of this information and remove the subject person from performing the work or services under this Agreement.

23. Training. Agent agrees to provide and document Compliance / Fraud, Waste and Abuse (FWA) training for all non-agent employees, management, temporary workers or subcontractors, if applicable. Agent agrees to utilize the training content located on the CMS Medicare Learning Network (MLN) to satisfy the general compliance and FWA training requirements. CMS' trainings are titled – "Medicare Parts C and D General Compliance Training" and "Combating Medicare Parts C and D FWA Training". If applicable, such training must be provided within 90-days of hiring and annually after. Documentation on completion of training (i.e., training certificate) must be retained in accordance with the CMS record retention guidelines as defined in Exhibit D Medicare Administrative Addendum.

24. Excluded Persons. Agent agrees to review the DHHS OIG List of Excluded Individual and Entities (LEIE List) and the GSA Excluded Parties Lists System (EPLS) for all non-agent employees, management, temporary workers or subcontractors, if applicable. These databases must be checked prior to hiring and during the term thereafter not less than monthly. Agent agrees to document the date of the review and retain all such document in accordance with the CMS record retention guidelines as defined in Exhibit D Medicare Administrative Addendum.

25. Amendment.

(a) Unilateral Amendments. Any amendment to this Agreement proposed by Ritter**,** shall be effective thirty (30) days after Ritter has given written notice to Agent of the amendment, and Agent has failed, within fifteen (15) days of Agent receiving written notice, to notify Ritter in writing of Agent's rejection of the requested amendment.

(b) Amendments to Comply with Laws and Regulations. Amendments required because of legislative, regulatory or legal requirements do not require the consent of Agent or Ritter and will be effective immediately on the effective date thereof.

(c) Prior Agreements. Agent and Ritter agree that this Agreement, including all exhibits, appendices and addenda attached hereto or incorporated into this Agreement by reference, constitutes the entire agreement between Ritter and Agent and will, upon execution by the Parties, supersede any prior agreement, oral or written, between the Parties concerning the subject matter of this Agreement.

26. Governing Law, Forum. This Agreement shall be governed by, and construed, and enforced in accordance with the laws of the Commonwealth of Pennsylvania, unless prohibited by the laws of the state where the policy of insurance is sold, that state's law shall apply, except to the extent such laws conflict with or are preempted by any federal law, in which case such federal law shall govern. The parties agree that with respect to any disputes, actions, suits or proceedings arising in connection with this Agreement venue will be in the Commonwealth of Pennsylvania in either the federal district court or the court of common pleas located in Dauphin County.

27. Cybersecurity Laws. Agent agrees to comply with all applicable laws governing Cybersecurity Events. A Cybersecurity Event is defined as any act or attempt, successful or unsuccessful, to gain unauthorized access to, disrupt or misuse an Information System or information stored on such Information System. Agent shall implement appropriate administrative, technical, and physical measures to protect and secure any Ritter information or non-public consumer information that are accessible to, or held by, Agent. Agent must have, and permit Ritter to audit via written request, the cybersecurity measures, safeguards, and standards used by Agent, including, but not limited to, policies, procedures and practices. Agent shall notify Ritter in the event a Cybersecurity Event that affects Ritter's information systems or Ritter information within the purview of this Agreement, including consumer information. Such notification shall occur within 24 hours from a determination that a Cybersecurity event has occurred. Ritter will decide on further action including, but not limited to, notification to the affected Insurance Companies or government entities. Notification to Ritter shall be provided to:

Ritter Compliance Officer
Email: Complianceofficer@ritterim.com

Ritter Compliance Officer
Ritter Insurance Marketing
2605 Interstate Drive

Harrisburg, PA 17110

[Signature Page Follows]

IN WITNESS WHEREOF, the Parties have executed this Agreement to be signed by their duly authorized representatives as of the Effective Date.

Ritter Insurance Marketing, LLC			
Signature:		Signature:	
Name:	Craig J. Ritter	Name:	
Title:	Chief Executive Officer	Title:	
Date:		Date:	

Exhibit A

ADMINISTRATIVE SERVICES

Task	Performance Goal *		
	Level 5	Level 6	Level 7
1. Identify, educate, interview and pre-qualify agents.	At least 1 downline agent in good standing.	At least 4 downline agents in good standing.	At least 7 downline agents in good standing.
2. Provide contracting, licensing, appointing efforts between agents, Ritter and Independence.	At least 1 downline agent in good standing.	At least 4 downline agents in good standing.	At least 7 downline agents in good standing.
3. Assure all agents are properly licensed, appointed, and certified to sell Medicare Advantage and/or Prescription Drug Plan products throughout the year.	At least 1 downline agent in good standing.	At least 4 downline agents in good standing.	At least 7 downline agents in good standing.
4. Participate in training, webinars and certification program.	As required	As required	As required
5. Provide ongoing training around the proper selling and servicing of Independence products to agents.	As required	As required	As required
6. Provide local leadership in each market for monitoring and oversight purposes.	Conduct and complete at least 1 Ride Along monitoring on downline agents during the current contract year using Independence's monitoring checklist.	Conduct and complete at least 2 Ride Along monitoring on downline agents during the current contract year using Independence's monitoring checklist.	Conduct and complete at least 4 Ride Along monitoring on downline agents during the current contract year using Independence's monitoring checklist.
7. Reinforce policy updates, compliance alerts, and other communications with agents.	As required	As required	As required
8. Aid in the collection of agent responses when necessary.	As required	As required	As required
9. Assist Ritter and Independence in ensuring timely resolution of incomplete or pended enrollment applications	As required	As required	As required
10. Review actionable information provided by Ritter and Independence and take action accordingly.	As required	As required	As required
11. Assist in the maintenance of accurate phone and address information for agents.	As required	As required	As required
12. Partner with Ritter and Independence leadership to joint market products and services	Sold at least 10 applications during current calendar year excluding rapid disenrollment.	Sold at least 25 applications during current calendar year excluding rapid disenrollment.	Sold at least 50 applications during current calendar year excluding rapid disenrollment.

13. Assist Ritter and Independence with disposition and distribution of pre-set leads, if applicable.	As required	As required	As required
14. If applicable, Agent must make timely, ethical and accurate commission payments to downline agents in accordance with CMS' compensation guideline. Documentation of commission payment universes must be delivered to Ritter and/or Independence upon request.	As required	As required	As required

*Performance goal requirements for top level hierarchy (downline agencies inclusive)

Exhibit B

2025 COMMISSION SCHEDULE

(Agent must be licensed, certified and in Ready-To-Sell status in each state separately in order to market and sell in the applicable state(s))

I. Medicare Advantage – Pennsylvania – Bucks, Chester, Delaware, Montgomery, and Philadelphia

Initial (From Original Medicare or New to Medicare, determined by CMS). First payment will be made at the Replacement level until Independence is notified by CMS to release the initial compensation and Independence pays this to Ritter.

Level	Commission*	Administrative Fee*	Total	Renewal Years 2 Plus *
7	$705.00	$145.00	$ 850.00	Up to 50% of FMV or carrier rate Plus $ 65.00
6	$705.00	$110.00	$ 815.00	Up to 50% of FMV or carrier rate Plus $ 40.00
5	$705.00	$ 80.00	$ 785.00	Up to 50% of FMV or carrier rate Plus $ 20.00
4	$705.00	$ 0.00	$ 705.00	Up to 50% of FMV
3	$655.00	$ 0.00	$ 655.00	Up to 50% of FMV or carrier rate Minus $25.00
2	$605.00	$ 0.00	$ 605.00	Up to 50% of FMV or carrier rate Minus $50.00
1	$555.00	$ 0.00	$ 555.00	Up to 50% of FMV or carrier rate Minus $75.00
0	$ 0.00	$ 0.00	$ 0.00	$ 0.00

External Replacement Commissions (excluding replacement of Independence Individual Medicare Advantage plan) - Renewing MA and New to Independence

Level	Commission*	Administrative Fee*	Total	Renewal Years 2 Plus *
7	$353.00	$145.00	$498.00	Up to 50% of FMV or carrier rate Plus $ 65.00
6	$353.00	$110.00	$463.00	Up to 50% of FMV or carrier rate Plus $ 40.00
5	$353.00	$ 80.00	$433.00	Up to 50% of FMV or carrier rate Plus $ 20.00
4	$353.00	$ 0.00	$353.00	Up to 50% of FMV
3	$328.00	$ 0.00	$328.00	Up to 50% of FMV or carrier rate Minus $25.00
2	$303.00	$ 0.00	$303.00	Up to 50% of FMV or carrier rate Minus $50.00
1	$278.00	$ 0.00	$278.00	Up to 50% of FMV or carrier rate Minus $75.00
0	$ 0.00	$ 0.00	$ 0.00	$ 0.00

Internal Replacement Commissions for Independence's Individual Medicare Advantage plan – Renewing MA and Renewing Independence

Level	Commission*	Administrative Fee*	Total	Renewal Years 2 Plus *
7	$353.00	$ 65.00	$418.00	Up to 50% of FMV or carrier rate Plus $ 65.00
6	$353.00	$ 40.00	$393.00	Up to 50% of FMV or carrier rate Plus $ 40.00
5	$353.00	$ 20.00	$373.00	Up to 50% of FMV or carrier rate Plus $ 20.00
4	$353.00	$ 0.00	$353.00	Up to 50% of FMV
3	$328.00	$ 0.00	$328.00	Up to 50% of FMV or carrier rate Minus $25.00
2	$303.00	$ 0.00	$303.00	Up to 50% of FMV or carrier rate Minus $50.00
1	$278.00	$ 0.00	$278.00	Up to 50% of FMV or carrier rate Minus $75.00
0	$ 0.00	$ 0.00	$ 0.00	$ 0.00

II. <u>Medicare Advantage – New Jersey</u> – Middlesex, Mercer, Burlington, Camden, Gloucester, Ocean, and Atlantic counties

Initial (From Original Medicare or New to Medicare, determined by CMS). First payment will be made at the Replacement level until Independence is notified by CMS to release the initial compensation and Independence pays this to Ritter.

Level	Commission*	Administrative Fee*	Total	Renewal Years 2 Plus *
7	$780.00	$135.00	$ 915.00	Up to 50% of FMV or carrier rate Plus $ 65.00
6	$780.00	$100.00	$ 880.00	Up to 50% of FMV or carrier rate Plus $ 40.00
5	$780.00	$ 70.00	$ 850.00	Up to 50% of FMV or carrier rate Plus $ 20.00
4	$780.00	$ 0.00	$ 780.00	Up to 50% of FMV
3	$730.00	$ 0.00	$ 730.00	Up to 50% of FMV or carrier rate Minus $25.00
2	$680.00	$ 0.00	$ 680.00	Up to 50% of FMV or carrier rate Minus $50.00
1	$630.00	$ 0.00	$ 630.00	Up to 50% of FMV or carrier rate Minus $75.00
0	$ 0.00	$ 0.00	$ 0.00	$ 0.00

External Replacement Commissions (excluding replacement of Independence Individual Medicare Advantage plan) - Renewing MA and New to Independence

Level	Commission*	Administrative Fee*	Total	Renewal Years 2 Plus *
7	$390.00	$135.00	$525.00	Up to 50% of FMV or carrier rate Plus $ 65.00
6	$390.00	$100.00	$490.00	Up to 50% of FMV or carrier rate Plus $ 40.00
5	$390.00	$ 70.00	$460.00	Up to 50% of FMV or carrier rate Plus $ 20.00
4	$390.00	$ 0.00	$390.00	Up to 50% of FMV
3	$365.00	$ 0.00	$365.00	Up to 50% of FMV or carrier rate Minus $25.00
2	$340.00	$ 0.00	$340.00	Up to 50% of FMV or carrier rate Minus $50.00
1	$315.00	$ 0.00	$315.00	Up to 50% of FMV or carrier rate Minus $75.00
0	$ 0.00	$ 0.00	$ 0.00	$ 0.00

Internal Replacement Commissions for Independence's Individual Medicare Advantage plan – Renewing MA and Renewing Independence

Level	Commission*	Administrative Fee*	Total	Renewal Years 2 Plus *
7	$390.00	$ 65.00	$455.00	Up to 50% of FMV or carrier rate Plus $ 65.00
6	$390.00	$ 40.00	$430.00	Up to 50% of FMV or carrier rate Plus $ 40.00
5	$390.00	$ 20.00	$410.00	Up to 50% of FMV or carrier rate Plus $ 20.00
4	$390.00	$ 0.00	$390.00	Up to 50% of FMV
3	$365.00	$ 0.00	$365.00	Up to 50% of FMV or carrier rate Minus $25.00
2	$340.00	$ 0.00	$340.00	Up to 50% of FMV or carrier rate Minus $50.00
1	$315.00	$ 0.00	$315.00	Up to 50% of FMV or carrier rate Minus $75.00
0	$ 0.00	$ 0.00	$ 0.00	$ 0.00

* Annual amount - payment method, timing and proration of payments depend on company policy. Fair Market Value (FMV) established by CMS during compensation cycle year 2 and beyond. Renewal compensation may be paid up to fifty (50) percent of the FMV, published by CMS annually. Future renewal administrative fees subject to change.

Exhibit C

Independence FMO/AGENT CODE OF ETHICS

Independence is committed to providing the best value and service to its members and potential members. To achieve this goal, Independence depends on all persons representing Independence to exhibit outstanding ethics and integrity. FMO/Agent hereby represents and warrants that it will comply with this Independence Agent Code of Ethics, all CMS regulations, and all state laws as an expression of personal commitment to honest marketing practices and recognizes that any violation of this Code will subject FMO/Agent to termination and/or possible legal action as specified in both state and federal guidelines. FMO is agreeing to this Code of Ethics on its own behalf and on behalf of any downstream Agents working within its sales hierarchy and FMO will supply a copy of this Code of Ethics to all downstream Agents working within its sales hierarchy.

Agents soliciting eligible Medicare beneficiaries for Independence product(s) **shall**, at all times:

- conduct themselves professionally, giving courtesy and dignity;
- display respect for the rights and reasonable requests of prospective enrollees;
- conduct all marketing activities according to CMS and Independence Marketing standards and guidelines;
- comply with all CMS regulations and applicable state and federal laws;
- base their presentations on the merit and quality of the respective products;
- give clear and accurate information regarding Independence products;
- make certain that all information on the enrollment application is complete, accurate, and legible;
- observe the Independence policy of non-discrimination by reason of race, creed, color, sex, age, or national origin;
- use only CMS and Independence approved marketing material and will conduct all marketing activities according to CMS and Independence Marketing standards and guidelines.
- Will cooperate with any investigations conducted by Independence, CMS or their representing entities

Agents soliciting eligible Medicare beneficiaries for Independence product(s) **shall not**, at any time:

- engage in door-to-door solicitation;
- disparage competitors or their products;
- use false, misleading, untrue, or exaggerated statements;
- conduct underwriting or health screening of any form or discourage prospective or existing members from enrolling or disenrolling in Independence based on their health status alone, except as permitted by CMS regulations (e.g., end stage renal disease).
- Inappropriately encourage members to disenroll: The FMO and its agents will not, orally or in writing, or by any action or inaction, request or encourage a Medicare member to disenroll, where it does not appear to be in the best interest of the member.

FMO/Agent may indicate that the Independence benefits meet criteria specified by the federal government. Agent will never imply that the Agent's visit is in any way connected with the government or approved by a particular governmental agency. Promotional pieces utilized by Agent must have prior approval by Independence and may not imply in any way that the product is endorsed by the federal government or any of its agencies.

All information relative to a member or prospective member must be kept confidential. At no time can a member or prospective member's information be provided to or sold to any First party.

Any person directly employed or contracted to market on behalf of Independence must provide a written disclosure statement to all potential enrollees prior to enrollment or at the time of enrollment, and the written disclosure statement must state the following, subject to CMS guidance: "The person that is discussing plan options with you is either employed by or contracted with Independence. The person may be compensated based on your enrollment in a plan."

Any marketing must be done in accordance with all applicable laws, CMS policies, including CMS marketing guidelines and restrictions on prohibited activities (marketing activities that are materially inaccurate, materially mislead, confuse Medicare beneficiaries, or misrepresent Independence or its benefit plans).

I have read and will comply with the Independence FMO/Agent Code of Ethics listed above.

Exhibit D

MEDICARE ADMINISTRATIVE SERVICES ADDENDUM

WHEREAS the parties adopt this Medicare Administrative Services Addendum ("Medicare Addendum") to the Agreement to comply with the requirements of the Medicare regulations at 42 C.F.R. Parts 422 ("Part C") and 423 ("Part D"), to the extent that Agent performs Medicare administrative services on behalf a Medicare Advantage Plan or a Prescription Drug Plan **("Plan")**.

Delegated Activities. Plan delegates to Agent and Agent shall provide Medicare administrative services, as listed in the Agreement. Agent acknowledges and agrees that Plan may only delegate activities or functions to Agent in a manner consistent with the requirements set forth as applicable in 42 C.F.R. §§ 422.504(i)(4) and 423.505(i)(4); 42 C.F.R. §§ 422.504(i)(3)(ii), 423.505(i)(3)(ii). Agent agrees that (i) the performance of the Delegated Activities and responsibilities thereof shall be subject to monitoring on an ongoing basis by Independence; and (ii) in the event that Independence or CMS determine that Agent has not satisfactorily performed any Delegated Activity or responsibility thereof in accordance with the CMS Contract, applicable laws and regulations and CMS instructions, then Independence shall have the right, at any time, to revoke the Delegated Activities by terminating the Agreement in whole or in part, and shall have the right to institute corrective action plans or seek other remedies or curative measures as contemplated by the Agreement. Agent shall not further delegate any activities or requirements without prior written consent of Independence.

1. **Consistency with CMS Contract.** Agent shall perform the services in a manner that complies with and is consistent with Plan's contractual obligations relating to performance of Medicare administrative services. 42 C.F.R. §§ 422.504(i)(3)(iii), 423.505(i)(3)(iii).

2. **Accountability**. Agent acknowledges and agrees that the Plan is required to monitor the performance of Agent on an ongoing basis and that the Plan maintains ultimate responsibility for adhering to and otherwise fully complying with all terms and conditions of the CMS Contract. 42 C.F.R. §§ 422.504(i)(2), 422.504(i)(4)(iii), 423.505(i)(4)(iii), 423.505(i)(2).

3. **Laws, Regulations and CMS Requirements**. Agent represents and agrees that, throughout the term of the Agreement, Agent shall comply with the following Laws and requirements, in each case to the extent applicable to Agent's performance of the Services: (i) all applicable Medicare statutes and regulations and CMS guidance, instructions and requirements; (ii) HIPAA and the HITECH Act, to the extent provided in the HIPAA Addendum attached to the Agreement; (iii) all other applicable Federal Laws. 42 C.F.R. §§ 422.504(i)(4)(v), 423.505(i)(4)(iv).

   (a) Fraud and Abuse. Agent shall comply with Federal Laws designed to prevent fraud, waste, and abuse, including applicable provisions of federal criminal law, the False Claims Act (31 U.S.C. § 3729 et seq.), and the Anti-Kickback statute (42 U.S.C. § 1320a-7b(b)). 42 C.F.R. §§ 422.504(h)(1), 423.505(h)(1).

   (b) Excluded Persons. Agent represents as of the effective date of the Agreement that neither it, nor any of its employees, members of its board of directors, officers, or Medicare subcontractors have been excluded from participation in the Medicare program or any other Federal Health Care Program or criminally convicted or has a civil judgment entered against it for fraudulent activities.

   Agent shall contractually require its Medicare subcontractors to ensure that their employees are not excluded from participation in the Medicare program or any other Federal Health Care Program.

   Agent must check appropriate databases to determine whether any of its employees, members of its board of directors, or officers or Medicare subcontractors has been excluded from participation in the Medicare program or any other Federal Health Care Program. These databases must be checked during the Term not less than monthly. Agent shall also check appropriate databases prior to when any of its employee, members of its board of directors, or officers commence their employment, directorship or ownership of Agent. Databases include the General Services Administration's Excluded Parties List System and the OIG Exclusion List. Agent shall notify Plan immediately in writing if Agent determines that any of its employees, members of its board of directors, or officers are suspended or excluded from the Medicare program or any other Federal Health Care Program or if criminally convicted or has a civil judgment entered against it for fraudulent activities.

   Agent shall notify Ritter immediately in writing if Agent determines that any of its employees, temporary employees, volunteers, consultants and members of its board of directors, officers or Medicare subcontractors are suspended or excluded from the Medicare program or any other Federal Health Care Program. Agent agrees that it is subject to 45 C.F.R. Part 73b and shall require its employees, members of its board of directors, or officers to agree that they are subject to 45 C.F.R. Part 73b. 42 C.F.R. §§ 422.752(a)(8), 423.752(a)(6).

Agent shall comply with all applicable provisions of Independence's Corporate Compliance Program and Standards of Business Conduct.

(c) **Compliance with Independence's Obligations, Policies and Procedures**. Agent agrees to comply with the Independence policies and procedures applicable to its Products, to the extent applicable to the Services Agent is providing under the Agreement.

4. **Confidentiality and Accuracy of Records**. Agent agrees to abide by all Federal and state Laws regarding confidentiality and disclosure and shall treat all enrollees' health and enrollment information, including any medical records or mental health records as confidential in accordance with the provisions of the Agreement, and comply with all applicable Laws regarding the confidentiality and disclosure of such health and enrollment information. Agent shall maintain such health and enrollment information in an accurate and timely manner and ensure timely access to such records and information by enrollees, all as set forth in the Agreement. 42 C.F.R. §§ 422.118, 422.504(a)(13), 423.136, 423.505(b)(14).

5. **Inspection and Audit**. Agent shall permit CMS, HHS, the Comptroller General, or their designees, to inspect, evaluate, and audit any of Agent's books, contracts, medical records, patient care documentation, documents, papers, and other records pertaining to any services provided under the Agreement. This right to inspect, evaluate, and audit shall extend ten (10) years from the expiration or termination of the Agreement or completion of final audit, whichever is later, unless otherwise required by applicable Law - 42 CFR §§ 422.504(i)(2)(i), 422.504(e)(2), 423.505(i)(2)(i), 423,505(e)(2). Agent shall permit the Plan to monitor and audit Agent's policies, procedures and systems at reasonable times under reasonable circumstances to ensure compliance with all applicable Medicare laws, regulations and CMS instructions. Agent acknowledges that Plan is required to undertake appropriate corrective actions in response to potential deficiencies, noncompliance, or FWA-42CFR§§422.503(b)(4)(vi)(G), 423.504(b)(4)(vi)(G). If Agent is subject to a corrective plan of action ("**CAP**"), Agent shall comply with the CAP as set forth in the Agreement. Agent will complete the Plan's Medicare Advantage (Part C and/or Part D) Compliance Attestation for Downstream Entities on an annual basis, if required.

6. **Contracts with Downstream Entities**. The following provisions also apply to Agent's delivery of the services:

(a) Agent shall contractually obligate any providers, contractors and subcontractors Agent utilizes in the delivery of the services to comply with all applicable Laws, for which Agent has a compliance obligation under this Medicare Addendum. 42 C.F.R. §§ 422.504(i)(4)(v), 423.505(i)(4)(iv).

(b) Agent shall not hold enrollees liable for any amounts that are the legal obligation of the Plan. 42 C.F.R. §§ 422.504(i)(3)(i), 423.505(i)(3)(i).

(c) Agent shall contractually obligate any providers, contractors, and subcontractors Agent utilizes in the delivery of the services to comply with the same conditions and restrictions that are applicable to Agent under this Medicare Addendum. 42 C.F.R. §§ 422.504(i)(3)(iii), 423.505(i)(3)(iii).

(d) Agent shall not subcontract for Part C and/or Part D activities outside the jurisdiction of the United States ("offshore subcontractor"), without Plan's prior written approval. In the event that Agent intends to contract for any Medicare Part C and/or Part D activities with an offshore subcontractor that relates to Member PHI, Agent must obtain the prior written approval of the Plan. Failure to do so may result in the immediate termination of the Agreement.

7. **Termination of Agreement for Breach.** Agent acknowledges and agrees that a breach of this Medicare Addendum shall be considered a breach of the Agreement. For purposes of the Medicare Addendum, a determination by CMS or Plan that Agent has not satisfactorily performed its delegated obligations under the Agreement constitutes a breach. 42 C.F.R. §§ 422.504(i)(4)(ii), 423.505(i)(4)(ii).

8. **Additional Contract Terms Required by CMS**. This Medicare Addendum shall automatically amend to include terms and conditions necessary to address additional contract terms required by CMS. 42 C.F.R. §§ 422.504(j), 423.505(j).

Exhibit E

Ritter Insurance Marketing, LLC
HIPAA Subcontractor Business Associate Addendum

This Subcontractor Business Associate Addendum ("**BAA**") adds to and is made a part of the Ritter Agent Compensation Agreement ("**Agreement**") by and between Ritter Insurance Marketing, LLC., hereinafter referred to as "**Company**" and Agent (hereinafter referred to as "**Service Provider**" and collectively with Company each a "**Party**" and collectively the "**Parties**"). This BAA is an integral part of the Agreement as if fully set forth therein.

1. **Preamble and Definitions**.

1.1 Under the Agreement, Service Provider may receive, create, maintain, store, transmit, or otherwise use and/or disclose individually identifiable health information of Individuals for which Company is responsible.

1.2 Company is a Business Associate, as defined in the HIPAA Rules (as defined below), and, therefore, with respect to the Services (as defined below), Service Provider is considered a Subcontractor of Company (and thus also a Business Associate), as those terms are defined for purposes of the HIPAA Rules.

1.3 Consistent with the foregoing statements, and as required by the HIPAA Rules, Company and Service Provider hereby agree to the following terms and conditions in connection with the Services and intend that this BAA shall serve as the satisfactory written assurance of Service Provider that it will appropriately safeguard the PHI (as defined below).

1.4 Except as otherwise defined in this BAA, capitalized terms used herein shall have the meanings ascribed to those terms under the HIPAA Rules, including without limitation: Breach; Business Associate; Covered Entity; Data Aggregation; Designated Record Set; Disclosure; Electronic Protected Health Information; Health Care Operations; Individual; Protected Health Information; Required by Law; Secretary; Security Incident; Standard Transaction; Subcontractor; Unsecured PHI; and Use. Any reference within this BAA to the HIPAA Rules, or to a specific section thereof, shall mean the statute or regulation in effect and as amended from time to time. Any ambiguity in this BAA shall be resolved in favor of a meaning that permits the Parties to comply with the HIPAA Rules.

(a) "**HIPAA Rules**" means the requirements of the Health Insurance Portability and Accountability Act of 1996 ("**HIPAA**"), the Health Information Technology for Economic and Clinical Health Act ("**HITECH**"), and the CFR regulations promulgated under HIPAA and HITECH, including the Privacy, Security, Breach Notification, Electronic Transactions, and Enforcement Rules codified at 45 C.F.R. Parts 160, 162 and 164, all as amended.

(b) "**Protected Health Information**" or "**PHI**" shall have the meaning ascribed to it in the HIPAA Rules but shall be specific to that PHI: (1) received by Service Provider from or on behalf of Company; (2) created, maintained, stored, or transmitted by Service Provider for or on behalf of Company; or (3) made accessible to Service Provider by or on behalf of Company. As used herein, the term "**PHI**" shall include, as applicable, physical PHI and Electronic PHI ("**ePHI**").

(c) "**Services**" shall mean those services performed by Service Provider for and/or on behalf of Company, whether under one or more agreement(s), to the extent (and only to the extent) that such services involve the accessing, receipt, creation, maintenance, storage, transmission, or other Use or Disclosure of PHI by Service Provider.

(d) "**Successful Security Incident**" shall mean a Security Incident that actually results in the unauthorized access, Use, Disclosure, modification, or destruction of PHI or any interference with system operations in an information system.

(e) "**Unsuccessful Security Incident**" shall mean any Security Incident that does not actually result in the unauthorized access, Use, Disclosure, modification, or destruction of PHI or interference with system operations in an Information System, such as pings or other broadcast attacks on a firewall, port scans, attempts to log onto any system or enter a database using an invalid username or password, denial-of-service attacks that do not result in the system being taken off-line, and malware (e.g., worms and viruses).

2. **Permitted Uses and Disclosures by Service Provider**.

2.1 **Permitted Uses of PHI**. Service Provider may use PHI as reasonably necessary: (1) to perform the Services; (2) for its proper management and administration; or (3) to carry out its legal responsibilities. If (and only to the extent) it is a part of the Services, Service Provider may perform Data Aggregation with regards to the Health Care Operations of Company or its customers.

2.2 **Permitted Disclosures of PHI**. Service Provider may disclose PHI as reasonably necessary to perform the Services, or for its proper management and administration, or to carry out its legal responsibilities; provided: (1) the Disclosure is Required by Law or (2) prior to making the Disclosure, Service Provider obtains written assurances from the person or entity to which the PHI is to be disclosed that (i) PHI will be held in confidence and used or further disclosed only as Required by Law or for the lawful purpose for which the PHI is disclosed to such person/entity, and (ii) in the event that the confidentiality of the PHI is compromised, such person/entity will promptly notify Service Provider in writing.

3. **Service Provider's Acknowledgment**. Service Provider acknowledges that certain HIPAA Rules apply directly to Service Provider as a matter of federal law and regardless of this BAA. Accordingly, Service Provider acknowledges and agrees that, in addition to the provisions of this BAA, Service Provider must comply with those provisions of the HIPAA Rules that are applicable to it as a Business Associate.

4. **Service Provider's Obligations**. Service Provider agrees that it shall:

4.1 **Compliance**. Not use or disclose PHI other than as permitted by this BAA or as Required by Law and, in any case, not use or disclose PHI in any manner that would violate the HIPAA Rules if done by Company or a Business Associate in general;

4.2 **Minimum Necessary**. Unless excepted by 45 C.F.R. § 164.502(b), limit its requests for, and Uses and Disclosures of, PHI to the minimum amount necessary to accomplish the intended purpose(s) of such request, Use or Disclosure;

4.3 **PHI Safeguards**. Implement and utilize appropriate safeguards intended to prevent the unauthorized Use and/or Disclosure of PHI, including administrative, physical, and technical safeguards that reasonably and appropriately protect the confidentiality, privacy, integrity, security and availability of ePHI, in accordance with 45 C.F.R. Part 164 Subpart C (the "**Security Rule**");

4.4 **Access**. If the Services involve maintaining PHI in a Designated Record Set, make such PHI available to Company (or, if directed by Company, to an Individual), in the form and format requested, and at the time and in the manner directed, by Company in writing, as necessary to satisfy Company's obligations under 45 C.F.R. § 164.524; and, in the event that Service Provider receives an Individual's request for access to, or a copy of, his or her PHI, Service Provider shall forward the request to Company within three (3) business days;

4.5 **Amendment**. If the Services involve maintaining PHI in a Designated Record Set, incorporate any amendment(s) to such PHI as directed by Company in writing, in accordance with 45 C.F.R. § 164.526; and, in the event that Service Provider receives an Individual's request to amend PHI, Service Provider shall forward the request to Company within three (3) business days;

4.6 **Documentation and Accounting**. Document Disclosures of PHI and all information related thereto as necessary for Company to provide an accounting of each Disclosure of PHI by Service Provider in accordance with 45 C.F.R. § 164.528, and make such information available, at the time and in the manner directed by Company in writing; and, in the event that Service Provider receives an Individual's request for an accounting of Disclosures of PHI, Service Provider shall forward the request to Company within three (3) business days;

4.7 **Confidential Communications**. Accommodate reasonable requests for confidential communications of PHI by alternative means or at alternative locations, as directed by Company on behalf on an Individual, in writing, in accordance with 45 C.F.R. § 164.522(b); and, in the event that Service Provider receives an Individual's request for such confidential communications of PHI, Service Provider shall forward the request to Company within three (3) business days;

4.8 **Restrictions**. Abide by restrictions on Uses/Disclosures of an Individual's PHI that such Individual requests and Company implements pursuant to 45 C.F.R. § 164.522(a); provided, however, that Service Provider is given timely written notice of such restrictions by Company;

4.9 **Reporting of Unauthorized Disclosures**. Report to Company, in writing and as soon as practicable, but in any event within forty-eight hours after discovering or becoming aware of, any: (1) Use or Disclosure of PHI by Service Provider or any of its Subcontractors or agents that is not permitted by this BAA; (2) Successful Security Incident impacting Service Provider or any of its Subcontractors or agents; or (3) acquisition, access, use or disclosure of PHI in a manner not permitted by this BAA or 45 C.F.R. Part 164 Subpart E (the **"Privacy Rule**"), including but not limited to any Breach of Unsecured PHI (each an "**Incident**"), which report shall include all relevant details then known to Service Provider, and, as soon as practicable thereafter, but in any event within five (5) business days following the initial report, supplement the initial report with such information as necessary for Company to provide notification to affected Individuals, the Secretary, and the media, in accordance with 45 C.F.R. Part 164 Subpart D (the "**Breach Notification Rule**") and/or other applicable laws and regulations;

4.10 **Mitigation**. Mitigate, to the extent practicable and at Service Provider's sole cost, any known harmful effect of any Incident, whether caused by Service Provider or any of its agents or Subcontractors, and take immediate steps to prevent any such further Incident or violation, per 45 C.F.R. § 164.530(f);

4.11 **Cooperation**. Cooperate with Company in connection with any investigation, risk assessment and analysis, notification and mitigation activities undertaken by Company in response to any Incident; abide by Company's decisions with respect to whether such Incident is a reportable Breach; and follow Company's reasonable instructions regarding the response to such Incident;

4.12 **Subcontractors**. Ensure that Service Provider's agents and Subcontractors that may access, create, receive, maintain, store, transmit, or otherwise use or disclose PHI for or on behalf of Service Provider enter into a written agreement with Service Provider pursuant to which such agent or Subcontractor agrees to abide by the restrictions, conditions, and obligations that apply to Service Provider under this BAA, in accordance with 45 C.F.R §§ 164.308(b)(2) and 164.502(e)(1)(ii); provided, Service Provider shall be and remain liable to Company for any and all acts, errors, and omissions of such agents and Subcontractors as if they were Service Provider's own acts, errors, and omissions, to the extent permitted by law;

4.13 **No De-Identification**. Not de-identify any PHI except as necessary to perform the Services and, in such case, Service Provider shall be prohibited from using or disclosing any such de-identified information for its own purposes without Company's prior written consent;

4.14 **No Remuneration**. Not receive remuneration, directly or indirectly, in exchange for PHI, other than from or on behalf of Company as consideration for the Services rendered by Service Provider or as otherwise expressly permitted by the terms of the service agreement(s) in effect between Company and Service Provider governing the Services;

4.15 **Subpoenas**. Unless prohibited by applicable law or court order, notify Company in writing within three (3) business days following the receipt of any subpoena or comparable legal process served upon Service Provider (or any of its agents or Subcontractors) that relates to PHI;

4.16 **Compliance with Privacy Rule**. To the extent that Service Provider carries out any of Company's obligations under the Privacy Rule, comply with the requirements of the Privacy Rule that apply to Company in the performance thereof;

4.17 **State Laws/Regulations**. Comply with the requirements of applicable state laws, rules and regulations pertaining to the confidentiality, privacy, security, availability, right of access to, and retention of a natural person's individually identifiable information;

4.18 **Access to Books/Records**. Make its internal policies, procedures, practices, books, and records pertaining to the safeguarding and Use/Disclosure of PHI available to the Secretary (or Company), in the time and manner as specified by the Secretary (or Company), for purposes of determining compliance with the HIPAA Rules;

4.19 **Retention**. Retain all documentation required by this BAA, the HIPAA Rules, and applicable state laws for the time periods required by the HIPAA Rules and applicable state laws, but in any case for no less than six (6) years following the expiration or termination of this BAA.

5. **Reporting of Unsuccessful Security Incidents**. The Parties acknowledge and agree that this BAA serves as written notice by Service Provider to Company that Unsuccessful Security Incidents may occur, from time to time, and that no further notice need be given by Service Provider to Company unless there is a Successful Security Incident, as required above in Section 4.9. Service Provider shall nevertheless maintain a reasonably detailed log documenting all Unsuccessful Security Incidents, to the extent known to Service Provider, and shall make a copy of such log available to Company promptly upon request.

6. **Standard Transactions**. To the extent that Service Provider conducts, in whole or in part, any Standard Transaction on behalf of Company, Service Provider shall comply, and will require its agents and Subcontractors involved with the conduct of such Standard Transaction (if any) to comply, with each applicable requirement of 45 C.F.R. Part 162 and any standards as may be mandated by applicable federal or state agencies. Service Provider will not enter into, or permit its agents or Subcontractors to enter into, any trading partner agreement in connection with the conduct of Standard Transactions that: (i) changes the definition, data condition, or use of a data element or segment in such Standard Transaction; (ii) adds any data element or segment to the maximum defined data set; (iii) uses any code or data element marked "not used" or that is not included in the Standard Transaction's implementation specification; or (iv) changes the meaning or intent of the Standard Transaction's implementation specification.

7. **Costs of Notification**. Service Provider shall, at the direction of Company, directly pay or reimburse the reasonable costs incurred by or on behalf of Company in response to any Incident caused by Service Provider or any of its agents or Subcontractors, including, without limitation: (a) the reasonable costs of providing notification to affected Individuals, the Secretary, the media, and/or other state or federal government agencies as may be required pursuant to 45 C.F.R. Part 164 Subpart D and/or other applicable law; (b) the reasonable costs associated with operation of a call center, for up to ninety (90) days, to handle inquiries/complaints regarding the Incident; and (c) the reasonable costs of providing affected Individuals with identity theft and/or credit morning services for up to twelve (12) months, if deemed appropriate by Company, in reasonable consultation with Service Provider, based on the nature and scope of the Incident.

8. **Obligations of Company**. Company shall: (a) promptly notify Service Provider of changes in or revocation of the permissions given by an Individual to use and/or disclose the Individual's PHI, if such changes may affect Service Provider's Use or Disclosure of PHI; and (b) not request Service Provider to use or disclose PHI in any manner that is not permitted under the HIPAA Rules if undertaken by Company.

9. **Term and Termination**. The terms and conditions contained in this BAA shall be effective as of the Effective Date and shall remain in full force and effect until the later of (a) expiration or termination of all contracts between Company and Service Provider that govern the Services or (b) when all PHI is either destroyed or returned to Company or, in the event that it is reasonably infeasible to return or destroy certain PHI, when protections are extended to such PHI as described in Section 10, below. Either Party may terminate this BAA and discontinue the Services, upon written notice to the other Party, if such Party determines, in its sole but reasonable discretion, that the other Party has violated a material provision of this BAA or the HIPAA Rules, which violation is not (or cannot be) cured and ended within a reasonable period of time, not to exceed thirty (30) days (the "Cure Period"), following its receipt of a written notice specifying the violation. Failure (or inability) of the breaching Party to satisfactorily cure such violation within the Cure Period shall be grounds for immediate termination of this BAA and discontinuation of the Services, subject to the provisions of Section 10, below.

10. **Obligations Upon Termination**. Upon termination of this BAA, Service Provider shall, at Company's option, return or destroy all PHI in Service Provider's possession, including in the possession of its Subcontractors and agents. In the event that Service Provider reasonably determines that the return or destruction of certain PHI is infeasible, Service Provider shall extend all of the protections, limitations, restrictions, reporting requirements, and other obligations set forth in this BAA to such PHI and shall limit all further Use and Disclosure of such PHI to those purposes that make its return or destruction infeasible for as long as Service Provider maintains such PHI. Furthermore, in the event it is infeasible for any agent or Subcontractor of Service Provider to return or destroy certain PHI, Service Provider shall require such agent or Subcontractor to extend all protections, limitations and restrictions set forth in this BAA to such PHI and to limit all further Use and Disclosure of such PHI to those purposes that make the PHI's return or destruction infeasible for as long as such agent or Subcontractor maintains such PHI.

11. **Indemnification**. Service Provider shall indemnify, defend and hold harmless Company, its parents, subsidiaries, and affiliates, and its and their respective directors, officers, employees, contractors, agents and representatives from and against every claim, suit, action, cause of action, proceeding, demand, damage, loss, penalty, assessment, settlement, judgment, fine, cost, expense, including, but not limited to, reasonable attorneys' fees, and other liability to the extent arising from or related to: (a) Service Provider's breach of any representation, warranty, or covenant contained in this BAA; and/or (b) Service Provider's or any of its agents' or Subcontractors' (i) violation of the HIPAA Rules or (ii) Use or Disclosure of PHI other than as permitted under this BAA (each a "Claim").

12. **Exclusion from Limitation on Liability**. If and to the extent Service Provider has sought to limit its liability under the terms of any agreement(s) between the Parties governing the Services, whether with a maximum recovery for direct damages, exclusion of indirect damages, and/or other form of limitation, all such limitations shall be inapplicable to any Claim and the indemnification obligations of Service Provider set forth above in Section 11. The provisions of this Section 12 shall not be superseded or replaced by any prior or future agreement between the Parties, unless done so by a written instrument, signed by the Parties, that expressly references this Section 12 of this BAA.

13. General Provisions.

13.1 **Entire Agreement**. This BAA constitutes the entire agreement and understanding of the Parties concerning the subject matter hereof, and supersedes and replaces any and all prior and contemporaneous agreements and understandings of the Parties, written or oral, concerning the subject matter hereof. This BAA may not be supplemented, modified or amended, except in a separate writing as agreed to and signed by each Party hereto. The Parties hereby agree to take such action as is necessary to amend this BAA as necessary for compliance with the requirements of the HIPAA Rules as they are amended from time to time.

13.2 **Reformation and Severability**. If any provision of this BAA is found to be invalid or unenforceable by any court of competent jurisdiction, such court should reform such provision to such narrower scope as it determines to be valid and enforceable and, if such provision cannot be reformed as anticipated above, then such provision shall be deemed separate and severable and shall not invalidate or render unenforceable the remaining provisions hereof, the Parties' intent being to effectuate this BAA to the fullest extent permitted by law.

13.3 **Waiver**. No waiver of any provision of this BAA shall be binding upon a Party unless consented to in writing by such Party. No waiver by either Party of any breach or provision of this BAA shall operate as, or be construed as, a waiver of any subsequent breach of this BAA or of any other provision contained in this BAA.

13.4 **Assignability**. Neither Party may assign or delegate, in whole or in part, this BAA or any rights or obligations provided for in this BAA, without the prior written consent of the other Party; provided, however, Company may assign this BAA to a successor in interest in the event of a merger, consolidation, combination or sale of all (or substantially all) of its assets or equity, upon prior written notice to (but without the consent of) Service Provider. Any assignment or delegation in contravention of this Section shall be void. This BAA is binding upon, and shall inure to the benefit of, the Parties hereto and to their respective successors and permitted assigns.

13.5 **No Private Cause of Action/Third Party Beneficiaries**. This BAA is not intended to, and does not, create a private cause of action by any individual, other than the Parties to this BAA, as a result of any claim arising out of the breach of this BAA, the HIPAA Rules or other state or federal law or regulation relating to patients' health information. Nothing express or implied in this BAA is intended to confer, nor shall anything herein confer, upon any person other than the Parties hereto any rights, remedies, obligations, or liabilities whatsoever.

13.6 **Ownership of PHI**. The Parties acknowledge and agree that, as between the Parties, all PHI subject to this BAA shall at all times be and remain the property of Company.

13.7 **Survival**. The terms and conditions of this BAA which, by their express language or their nature and context, are intended to survive the expiration or termination of this BAA shall survive any such expiration or termination. Without limiting the generality of the foregoing, the following Sections of this BAA shall survive its expiration or termination: 7, 10, 11, 12, 13 and 14.

13.8 **Governing Law**. To the extent not preempted by federal law, this BAA shall be governed by, and construed, interpreted and enforced in accordance with, the laws of the State of Delaware, without regard to its conflicts of law principles.

13.9 **No HIPAA Agency Relationship**. The Parties do not intend an agency relationship (as defined under the Federal common law of agency) to be established hereby, expressly or by implication, for purposes of liability under HIPAA. No terms or conditions contained in this BAA shall be construed to make or render either Party an agent of the other Party.